

“When National No’s Meet Local Yes’s: Decoupling and Local Action in the Netherlands Immigration Governance”

Introduction

The paper explores ways in which decoupling as a governance phenomenon within Multi Level Governance (MLG) paves way (through flexibilities and innovation) for Street Level Bureaucrats (SLBs) to exercise more inclusive approaches to migrants with irregular status. In the larger contexts where national governments issue restrictive immigration policies, there is an increasing local turn that many scholars are interested in studying where municipalities and cities ‘shoulder the responsibility’ of developing their own strategies that have an inclusionary effect. For example: provision of welfare services even if it directly contradicts the national restrictive stance. While extensive literature on the MLG framework emphasizes the interplay between vertical and horizontal actors, most primarily focus on those interactions that highlight divergences between national and the local level. Majority of MLG literature offers little insight into the potential that decoupling could not only lead to divergences between rule setters, different tiers of service providers and implementers but also open pathways or make gaps visible for actors to mediate, innovate and solve. The paper thus aims to provide evidence on how decoupling can function as an instrumental process to highlight the role of SLBs who deal with diverging policies and who justify the provision of the services that goes beyond the national requirement.

The use of “migrants with irregular status” or “irregular migrants” refers to non-EU nationals who have entered Europe without documentation or who have breached their conditions of entry or stay. As irregularity can signify a range of differing immigration status, here, the irregular status of the migrants can be synonymously understood as undocumented populations. It is pertinent to study them considering the framing of the refugee crisis in Europe where the European Commission estimated that the number of applications of asylum seekers to be refused residence permit stood at a staggering number of one million, yet the return rate of these populations is less than 50% (Spenser & Delvino, 2019). They then will remain in the region with precarious status and with limited access to welfare support. The use of MLG approach to understanding this issue needs to go beyond the power structure of national vs local but explore the presence of varying actors such

as the local and non-state who have different interpretation and implementation of policies directed to the irregular migrants. Thus, I use an overarching Street Level Bureaucrats (SLBs) to denote service providers at the local level for example: operators at cities or municipal level, public professionals, non-state or human service actors without limiting the dangers of lumping them all together as “local actors”.

While the national governments are entrusted with more competence to immigration control, the matters of dissemination of welfare policies are a shared responsibility, currently, devolving more to the local levels at the hands of SLBs, consequently increasing the incongruence between the local and the national. We can argue that these incongruencies in forms of decoupled relations exist either because of local pragmatism to accommodate ethnic diversity or to solve specific local problems (Leun, 2006; Emilsson, 2015). The paper is more interested in understanding not the explanations of why these decoupled incongruencies happen but to understand how decoupling helps in intervention with the presence of SLBs. My larger question for the paper thus is: How decoupling in multi-level governance creates spaces for inclusive local policies towards migrants with irregular status and to what extent do street level bureaucrats navigate these divergences? To answer the question, the paper draws on case policies from the Netherlands such as the ‘bed-bath-bread’ arrangements and other local strategies contradicting the national anti-immigrant stance. The paper is organized first, using the MLG and decoupling lens to understand the context of immigration policies and within it the role of SLBs. Second, shows evidence on how decoupling opens spaces for SLBs to deploy innovative solutions, are they innovative or merely reactionary? and finally through examples of local actions from the Netherlands encapsulate the local realities.

“Irregular migrants benefit from weak coordination between actors, which allows them to receive assistance without becoming a “case” for which a “file” is compiled”.

~ (Felder et al., 2023)

Theoretical Framework: Decoupling and Intervention of SLBs in MLG

MLG is distinct from other ideal types of governance – it does not involve hierarchies such as the centralist that uses top-down approaches or the localist that has more of a bottom-up perspective in a multi-level setting, rather, diverse actors come together in a more level playing field to engage in meaningful policy coordination. MLG has evolved as the result of the trends of up, down and out or similarly combining the vertical and the horizontal dimension of the governance (Scholten, 2016; Emilsson, 2015). The horizontal component captures the "urban governance dimension," measuring interactions between the city government, grassroots organizations, local actors, and other stakeholders who have a voice in city politics and who mobilize from the bottom up. On the other hand, the vertical component includes superlevel policymaking and intergovernmental interactions (Bazurli & Kaufmann, 2022, p.3). Much of the MLG approach and existing literature in migration policies are rather descriptive placing an overemphasis on the outcomes of the governance, either only convergence or divergence, neglecting the processes and the actors that enable to produce these outcomes (Dimitriadis et al., 2021). Especially in a multi-level setting it is important to take into consideration how actors perceive the migration issue – whether as a challenge to be controlled or requiring pragmatic solutions, how they take moral considerations and or suggest remedies. Increasingly local levels are found to adapt, modify and or adopt immigration policies that are ideologically different from the national stance (Emilsson, 2015) and as Scholten puts it they are devolving to become more ‘entrepreneurial’ in not only setting up their own policies but also playing an active role in setting up ideas and agendas at the national level.

One way to look at the possibility of decoupling in relation to the migration issue is through a crisis mentality, which frames the 2015 European migration influx as a ‘crisis’ that requires strong central leadership and a restrictive stance that may not be translated to other tiers of governance. Presence of a right-wing party that sees undocumented immigrants as invaders hence reinforces the national agenda to maintain urban decency, hygiene or preservation of diminishing welfare resources (Hernes, 2017; Ambrosini, 2020). Looking closely at how decoupling occurs can be

explained firstly, when a joint coordination of vertical and horizontal (both formal and informal) interaction is not reached; possibly leading to policy contradictions. However, decoupling is not just the result of differing interests and goals at different governance tiers but differences in problem framing between the national and the local governments (Meijer et al., 2023). The restrictive position stems from the national government's portrayal of irregular immigrants as "outsiders" or "them," who take advantage of welfare programs in a funnel like fashion where generous subsidies only trickle down and there are only take-and-not-give relationships. However, at the municipal level, policies that provide services like health care, housing, education, social services, and political representation are often inclusive (but occasionally exclusive). The focus of local framing centers on agenda-setting to address local issues of homelessness, unemployment, criminality, and not being perceived as outsiders.

Secondly, decoupling is increasingly becoming an instrument for delegation of responsibilities. Whether delegation is a covert tactic used by national governments to avoid their immigration obligations or to give local governments more power is again a debatable question and requires more attention. However, Dimitriadis et al. (2021) provide a constructive view of this delegation, as Dutch municipalities explored ways to deal with national exclusionary asylum policies by collaborating with civil societies to modify the reception and accommodation tactics. When it comes to policies pertaining to migrants with irregular status, majority of EU member states continue to transfer responsibility among themselves with the intention of "organized non-responsibilities" (p. 258). This creates reliance on the horizontal dimension of MLG such as the Civil Service Organizations (CSOs) in accommodating the new arrivals. This shifting of relationship from national to local levels but also from public to private can be seen from a positive point of view where local stakeholders identify gaps left by the national governments and create initiatives to support the irregular migrants amid rising lack of political will from the former. In the light of this evidence, I argue that decoupling in multi-level governance does more than reveal national vs local divergences; it can function as an incremental governance mechanism creating spaces for local actors—particularly street-level bureaucrats to mediate, innovate and sometimes muddle through complex immigration policy gaps. Rather than seeing street-level bureaucrats' actions as merely a response to the divergences caused by decoupling, I propose that decoupling

itself creates flexibility enabling actors to check and balance national mandates against local realities.

Beyond Divergence and Resistance: Does Decoupling Strengthen SLBs Agency in MLG?

“Michael reflected on this double nature of his work. ‘Of course I am the system, and I am a mechanism of control [...] I am a part of the system, I have to recognize that, but I can hide it out here, [...] luckily, I don’t have to force people”.

~ (Birk & Arp Fallov, 2021)

The inclusive practices of the local level especially cities towards migrants with irregular status has often been discussed under labels such as sanctuary cities or solidarity cities (Ataç et al., 2020) focusing much on the divergence dimension where the local levels do what they do either as corrective measures and or as a form of resistance against national governments. These insurgent responses are often enacted as “remedy from below” (Bazurli & Kaufmann, 2022) similarly, symbolisms such as ‘sanctuary’ or ‘solidarity’ itself require irregular migrants to be concealed or shielded from the government. Not that these resistances don't occur; it's only that much literature highlights how local or non-governmental actors' role as resisters reduces or diminishes their agency. Many explored studies are based on the theory that decoupling causes national and local policies to diverge which in turn sends contradictory messages to the target group reducing the overall effectiveness of the policy, only few such as (Olsen & Larsen, 2023) show that decoupling in addition can create interaction and learning and such interactions can cater the dealignment. And (Oliver et al., 2020) provides evidence, amid increasingly polarized stances between anti-immigrant versus the welcoming humanitarian disposition - a new radical shift in the location of power is taking place called the “new localism”. The competencies are shifting downwards from the nation states to cities more horizontally and accentuating the role of local service providers beyond passive actors but active implementers interacting the local or regional immigration policies.

While migration policies majorly focus on the deservingness or under deservingness of irregular migrants in terms of accessing welfare assistance, who gets what, while it may be an important avenue in distinguishing the inequalities many undocumented migrants encounter but this by itself reveals very little about who really has the access to give away these assistances? and how are they being delivered? Thus, decoupling solely cannot address irregular migrants' inclusion at the local level without looking into the role of SLBs, their ways of mediation, innovations and who provides formal inclusion, not merely sympathetic ones. (Felder et al., 2023) describes these forms of support as “municipal activism”. Street-level bureaucrats are those who work within the public welfare systems and include local actors like CSOs and other service providers who are especially involved in public service delivery and participate in the everyday negotiation of the rights of irregular migrants. Service providers like doctors, welfare officers, school and housing administrators are increasingly made responsible to implement national immigration agendas and are placed at an obstinate position to distinguish irregular migrants as ‘lawful’ or ‘unlawful’ and based on that whether they deserve the services. According to (Schweitzer, 2020) there are three ways of SLBs being involved in immigration control: through deputization (being required to check immigration status), responsabilisation (encouraged but not forced to check status), and autonomisation (self-check). The fact that immigration controls are being transferred at the local level at the hands of SLBs suggest their increased agency and thereby could fill the gap of service providence which the national level restricts.

However, it would be wrong to assume that all local levels are more welcoming and have a more positive attitude toward irregular migrants. For instance, the southern United States supports exclusionary policies, but coastal regions with higher levels of education and economic security tend to be more welcoming and inclusive. SLBs are at a peculiar position, and in order to overcome these differences, municipalities support policies that are blatantly at odds with the national position, such as issuing municipal access cards, prohibiting information from being shared with immigration enforcement (such as the "don't ask, don't tell policies"), and initiatives aimed at fostering greater trust between local authorities and undocumented migrants (Lacroix & Spencer, 2022). Similarly, SLBs employ the process of layering (where they combine various rules) and networking (with state and non-state actors) to provide services to the irregular migrants (Careja, 2019). Studies from (Spenser & Delvino, 2019) indicate: irregular migrants are receiving day and

night shelters, food banks, medical attention, education, and legal counsel at the city level. Some services, like housing, are specifically restricted by national laws; in these situations, they nevertheless keep the services alive by funding NGOs to provide them instead. In other cases, shelters were operated taking into consideration the ambiguity of legal restrictions in the domestic laws and or with the justification of international laws. (Falloo & Birk, 2022) include innovative examples of capacity building, such as teaching women how to navigate the community, ride bicycles to improve their mobility, lowering benefit rates and capping the total amount of benefits that can be received, providing food project facilities, financial education and using house visits as a mediation tool to help parents improve their parental skills. SLBs increasingly mediate the sanctioning and repressive national policies by utilizing their local organizational network and through meaningful tactics. Thus, the flexibility of street-level bureaucrats to adapt to conflicting policies have led to sustainable efforts to assist irregular immigrants rather than ad hoc measures.

Case Study of the Netherlands: Evidence of Decoupling in practice

“We do this ... on the basis of public order and safety ... and based on the humanitarian safety net, we do not want people to sleep on the streets (...)”

~ (Ataç et al., 2020)

Leun (2006), labels Netherlands as a reluctant country of immigration because since the 1990s the Dutch government has in lieu pursued the discouragement policy for illegal residence by enacting the Linking Act in 1998 which has affected the position of the undocumented migrants in terms of tying their social security to legal residence status and employment opportunities. With the national narrative such that ‘the country is full’ being pushed, the Netherlands has advanced discouragement policies forcing service providers to bar migrants from accessing public services. And if they are not extremely vulnerable then they are left to the streets to fend for themselves. The Act unsurprisingly has met with strong friction from the bottom - local governments, public and semi-private organizations calling it “unnecessary” “immoral” and “unworkable”. Thus, in a decoupled system even with complexities and uncertainties, the SLBs are oriented towards providing people changing services such as education and health care or people sustaining services

such as housing and social benefits – irregular immigrants are not viewed differently than their local counterparts by the SLBs. Thus, a decoupled system has opened a myriad of opportunities for SLBs in Amsterdam and in other Dutch municipalities to extend, mediate and innovate services that diverge vastly from the national mandate.

An infamous Dutch example includes the “Bed-Bad-Brood” or “BBB-Scheme” where municipalities lobbied with national governments to install temporary accommodation facilities (Ataç et al., 2020). However, in 2015, and again in 2023 there has been increased push backs from the national governments to close these facilities as measure to disincentive, the irregular migrants, the decisions thus made were without taking into considerations the local realities – irregular migrants who reside in these temporary accommodation will go back living on the streets, illegally and precariously and will not solve the larger problem at hand. Instead, cities like Amsterdam have continued to operate shelters even out of their own budgetary means despite court ruling it out as ‘extra-legal’ measures. They continue being loud and their approach resembles being discursive and policy based counter politics. Other examples from the Dutch municipalities include taking up litigation measures to the European Committee of Social Rights, collaborating with NGOs, faith-based organizations and other welfare organizations to set up ‘shadow networks’ (Kos et al., 2016). Municipality of Berkelland in 2019 hosted Berkelland Friends Festival (BFF) for cultural integration and provided efforts to disseminate education, matching job seekers and employers or self-organization (Meijer et al., 2023). For the city of Rotterdam integration of irregular migrants through socio-economic participation were at the forefront of the agenda through projects such as Integration for Newcomers. Even in response to increasing politicization when immigration was framed as increase in criminality, radicalization, loss in social cohesion and Islamophobia, the city promoted more assimilationist policies. There are however some convergences with the restrictive national policies, but they are driven more by the municipalities themselves (Scholten, 2016). The actions of SLBs therefore on one hand are constantly challenging the national government. They through active advocating, negotiating and organizing create more inclusive policies whereas on the other hand directly circumvent the national restrictions by providing services on the ground and creating welcoming spaces either through collaboration or by independent measures. SLBs and local levels are not just policy actors who change the national legislation to increase the scope

of inclusionary policies but are one of the key drivers to developing and implementing policies that differ from the national levels.

Discussion: Decoupling as an Incremental governance mechanism

Decoupling in governance allows for flexibility by enabling local authorities to implement policies that diverge from national frameworks while maintaining an overarching legal structure. In the Netherlands, cities like Amsterdam, Rotterdam and other municipalities illustrate how SLBs navigate restrictive national immigration policies through local adaptations. Amsterdam, for example, has pursued inclusive housing and social support measures for irregular migrants, such as the BBB scheme, despite national policies prioritizing deterrence and deportation. Rotterdam, while historically more aligned with national policies, has also experimented with targeted social integration initiatives. These cases demonstrate that decoupling fosters incremental change by creating room for local innovation and adaptation without requiring immediate structural overhauls. By gradually introducing alternative and innovative governance strategies, local level can challenge rigid national policies while maintaining a degree of compliance. Traditionally the MLG frameworks emphasize coordination between governance levels, but Dutch case studies show that local autonomy can sometimes function effectively through strategic non-compliance or selective implementation. Amsterdam's inclusive migrant policies illustrate how municipalities navigate national constraints by leveraging discretionary power, engaging civil society actors, and forming policy coalitions that extend beyond formal government structures. This suggests that decoupling is not merely a governance workaround but a potential model for balancing restrictive national policies with localized inclusivity.

Another point of contention is that accessibility to services is not just about the regulations in place, decoupling needs to move beyond the conflict analysis between national level creating restrictive stance and to counter local level building retaliatory inclusive policies. In this equation often the role of service providers or the street-level bureaucrats get little attention. Accessibility to services depends on case-by-case basis with the decisions made by the service providers – some have made it easy for migrants of irregular status to utilize those services and at other times made it difficult/exclusionary. [Schweitzer \(2020\)](#) highlights that SLBs handle everyday service provision

with flexibility, and they make decisions because they have a lot of freedom to do so, and they work independently from the national higher-ups. The decisions of SLBs are hard to control by the government directly hence they have more autonomy to make choices that ultimately affect people's lives. With this flexibility they can choose to not comply with the rules that are contradictory to their professional ones, or they can simply re-interpret certain policy aspects that work in favor of the undocumented migrants. Thus, decoupling can enable street-level actors to implement policies that reflect local values even when national mandates prohibit such actions.

However, decoupling is not the ultimate governance mechanism it does possess many challenges; a major one is policy fragmentation; not all local levels can have the same inclusionary policies, they can adopt diverging strategies based on different local realities, this then will ultimately lead to inconsistencies in service delivery at different places. A second challenge is the lack of resources at the local level especially amongst smaller units (non-cities, smaller municipal tiers), only having a strong will to create inclusion for irregular migrants will not be enough to keep up when the resource crunches, and when national governments refuse or threaten to not fund inclusionary initiatives, then local level might fold.

Conclusion

This article has examined how decoupling in multi-level governance serves as a crucial mechanism for flexibility by providing spaces for inclusive local policies to emerge, in contexts where national and local priorities diverge. As decoupling occurs local actors such as the street level bureaucrats have found ways to navigate divergences with strategic options to provide services to irregular migrants without alienating the center completely.

My main conclusion is that decoupling can occur in almost every tier of governance whether national or local, highlighting the issue of problem framing or policy mechanisms adopted to solve the migration issue. However, decoupling, in contrast to what previously understood reveals more than these governance differences, it functions as an incremental governance mechanism allowing street-level bureaucrats to mediate, innovate and navigate complex immigration policy gaps. Street level bureaucrats with their decision to distinguish between “illegal” or “legal” migrants and to

provide or not to provide services has an immense impact on the lives of those on the receiving side. They have greater flexibility to provide these life changing or life sustaining services to the migrants in question. SLBs have great agency to not only respond to the divergences caused by decoupling, but also to check and balance national mandates against local realities.

With examples such as the BBB scheme, illustrate how decoupling allows cities to experiment with alternative policy solutions without directly challenging national authority – serving as an incremental governance tool while fostering innovation and inclusivity. The implications of these findings extend beyond the Netherlands, contributing to broader debates on migration governance in Europe. Many EU countries face similar tensions between national immigration restrictions and local demands for greater inclusivity. The Dutch case suggests that allowing cities greater policy discretion can mitigate some of these tensions by enabling localized solutions to tackle their own urban/local realities. But it also raises concerns about policy fragmentation and uneven access to services. Decoupling, if institutionalized more systematically, could offer a model for balancing national enforcement priorities with local humanitarian concerns. Future research should explore how decoupling operates in other European contexts, particularly in smaller local tiers who have limited resources to keep providing inclusionary services and those facing similar national-local tensions. Comparative studies could provide insights into whether decoupling is a viable long-term governance strategy or merely a temporary workaround in the absence of broader policy reforms. Finally, it is important to investigate the role of SLBs in migration governance across different institutional settings and how these actors shape larger policy outcomes, not just as actors who fill the gaps by providing essential services when the national governments don't.

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